

ORDER SHEET
LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

F.A.O. No. 53876 of 2025

Waseem Akhtar Sheikh, etc.
Vs
PEMRA through its Chairman etc.

Date of hearing	21-04-2026
Appellants by:	• Barrister Syed Zakir Hussain Shah, Advocate. • Barrister Syed Sada Hussain Naqvi, Advocate
Respondents by:	• Mr. Muhammad Zahid Bukhari, Advocate • Mr. Arslan Sarwar Ch., Advocate • Mr. Allah Tawakal, Advocate

Ch. Sultan Mahmood, J:- Brief facts of the case are that the petitioners filed a complaint before the PEMRA authorities alleging that defamatory and misleading content was aired by a private channel on 17.02.2025 against them. The Chairman PEMRA, while acting under Section 29-A of the PEMRA Ordinance, 2002, imposed a fine upon Respondents No. 3 to 9. Subsequently, the same complaint was placed before the Council of Complaints under Section 26(9) of the Ordinance, which is a recommendatory body empowered to suggest imposition of fine or other regulatory measures, including censure and monetary penalty up to the prescribed limit.

It is contended that Section 29-A provides two competent forums, namely the Authority and the Chairman, for imposition of fine, and since the matter had already been adjudicated by the Chairman, being one of the designated forums, the Council of Complaints rightly declined to proceed further and recommended closure of the matter. The petitioners, however, have challenged the said action contending that the Council of Complaints is an

independent and separate tier within the regulatory framework and, therefore, ought not to have closed the matter and instead should have proceeded to decide it on merits.

2. Learned counsel for the petitioners has contended that the impugned action is contrary to the statutory scheme of the PEMRA Ordinance, 2002, as the Council of Complaints is an independent and distinct forum from the Chairman and the Authority. It is argued that the jurisdiction exercised by the Chairman under Section 29-A is punitive in nature, whereas the Council of Complaints functions as a recommendatory body under Section 26(9) of the Ordinance, and both forums operate in different spheres. Learned counsel submits that merely because the Chairman had already taken cognizance of the matter and imposed penalty, the jurisdiction of the Council of Complaints could not have been excluded, as the statutory framework envisages parallel and independent consideration of grievances. It is further contended that closure of proceedings by the Council on the ground of prior adjudication is misconceived and has resulted in denial of due statutory process, rendering the impugned decision legally unsustainable.

3. On the contrary, learned counsel for the respondents has supported the impugned action and submitted that once the Chairman PEMRA, being a competent authority under Section 29-A of the PEMRA Ordinance, 2002, had already adjudicated upon the matter and imposed penalty, the same controversy could not be reagitated before the Council of Complaints.

4. Arguments heard. Record perused.

5. The crux of the above discussion is that the Authority and the Chairman are two prescribed functionaries under the same statutory provision and, for the purposes of the said provision, operate as alternative forums rather than distinct parallel tiers. Once one of the competent forums has already adjudicated upon the matter on the basis of the same material facts and imposed penalty upon Respondents No. 3 to 9, any further invocation of jurisdiction on

identical grounds would amount to duplication of proceedings, abuse of process of law, and would be contrary to the principles of fairness and finality.

6. Perusal of the record reveals that the controversy in the present matter pertains to initiation of multiple proceedings on the same set of allegations arising out of a single broadcast. It is an admitted position that the competent authority had already taken cognizance of the matter and imposed a penalty in respect thereof. Once proceedings on a particular set of allegations have culminated and attained finality, the same cannot be reagitated or reopened through subsequent proceedings on identical facts, as it would amount to duplication of proceedings and an abuse of process of law. The settled principle is that no person should be vexed twice for the same cause, and finality attached to concluded proceedings cannot be disturbed in the absence of lawful justification. In this regard, reliance is placed upon Ghulam Mustafa Khan v. Federation of Pakistan through Secretary and another (2010 PLC (C.S.) 426), Lt. Cdr. (R) Abdul Aziz Narejo v. Karachi Port Trust through Chairman and another (2015 PLC (C.S.) 699) and Secretary, Local Government and Rural Development, Government of Punjab, Lahore and another v. Ahmad Yar Khan (2010 SCMR 861), wherein it has consistently been held that once proceedings on a particular set of allegations have culminated and attained finality, initiation of fresh or parallel proceedings on the same facts is not permissible in law. Applying the said principle to the present case, any attempt to initiate or sustain subsequent proceedings on identical allegations is legally untenable; therefore, the impugned order does not suffer from any legal infirmity and is liable to be upheld.

7. Moreover, the contention raised by learned counsel for the appellants that the principle embodied in Article 13 of the Constitution is not applicable to administrative proceedings is not tenable. The proceedings in the present case being quasi-judicial in

nature, the principle against double jeopardy has rightly been considered in its appropriate legal context.

8. It has further been contended that the Chairman, being an executive functionary, was not competent to impose fine as the same offends the doctrine of separation of powers. The said contention is misconceived. The Hon'ble Supreme Court in Government of Sindh through Chief Secretary to Government of Sindh, Karachi and others v. Sharaf Faridi and others (PLD 1994 SC 105) has already settled that regulatory and disciplinary powers can validly be exercised by statutory or quasi-judicial authorities, subject to provision of adequate safeguards and appellate remedies. Furthermore, there is a well-recognized distinction between judicial powers exercised by courts and regulatory powers conferred upon statutory authorities. In the present case, the impugned proceedings have been conducted by a competent authority under the law and the order passed thereunder is subject to appeal before this Court. The availability of such remedies sufficiently safeguards the rights of the appellants and satisfies the requirements of due process. In these circumstances, no illegality, material irregularity or jurisdictional defect is found in the impugned order so as to warrant interference by this Court in exercise of appellate jurisdiction. Even otherwise, the test laid down in Mehram Ali and others v. Federation of Pakistan and others (PLD 1998 SC 1445) encompasses three essential aspects, namely: independence, impartiality, and subordination to the High Court, which have been recognized as indispensable pre-requisites for access to justice. Reliance in this regard is placed upon paragraph 11 at page 1477 of the said judgment. In the present case, the decision rendered by the regulator is subject to appeal before this Court under Section 31-A of the PEMRA Ordinance, 2002. Therefore, when the existing statutory framework is examined on the touchstone of the three-pronged test laid down in *Mehram Ali's* case, it becomes evident that the orders passed by the quasi-judicial regulatory authority remain subject to the appellate and supervisory jurisdiction of this Court. Consequently, it cannot be held that the jurisdiction vested in such quasi-judicial

regulator is inconsistent with, or runs contrary to, the mandate of separation of judiciary envisaged under Article 175 of the Constitution of the Islamic Republic of Pakistan.

9. Now advertent to the contention that the decision of the regulator is contrary to the right to a fair trial, it may be observed that the concept of a fair trial embodied in Article 6(1) of the European Court of Human Rights is, in substance, similarly reflected in Article 10-A of our Constitution.

In this regard, the principle laid down by the European Court of Human Rights in *Bryan v. The United Kingdom* (1995)¹ is of considerable relevance to the present case. The Court held that even where the initial determination of civil rights and obligations is undertaken by an administrative or quasi-judicial authority, the requirements of Article 6(1) are satisfied provided that the decision is subsequently subject to judicial review by a court possessing sufficient jurisdiction to examine questions of legality, procedural propriety and the rationality of the impugned decision.

The Court further clarified that Article 6 does not invariably require a full rehearing on facts or merits, particularly in matters involving technical expertise or regulatory discretion, such as planning control. It was emphasized that a limited scope of appellate review does not, by itself, render the process incompatible with the guarantees of a fair trial, so long as effective judicial supervision is available.

In view of the foregoing principle, it is evident that where an adequate and effective mechanism of judicial review exists, the requirements of fair trial and due process stand satisfied. In the instant case, this safeguard is fully secured through the availability of a statutory right of appeal against the regulator's decision.

10. In view of the above discussion, the impugned order does not suffer from any illegality or jurisdictional defect warranting

¹ BRYAN v. THE UNITED KINGDOM - 19178/91 [1995] ECHR 50 (22 November 1995) URL: <https://www.bailii.org/eu/cases/ECHR/1995/50.html>

interference by this Court. Consequently, the instant appeal, being devoid of merit, is hereby **dismissed**.

(Ch. Sultan Mahmood)
Judge

Approved for reporting

Judge

*Shafqat/**